IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT – IV

Item No. 404
CP(CAA)50/ND/2020

IN THE MATTER OF:
Upfront Tranding Pvt Ltd ... Applicant

Order under Section 230-232.

Order delivered on 11.04.2023

Coram:
MR. P.S.N. PRASAD
HON'BLE MEMBER (JUDICIAL)
DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Ms. Easha Kadian, Jr. St. Counsel
For the OL : Ms. Hemlata Rawat, Mr. Aayushmaan Vatsyayana, Advs..

ORDER

Heard the submissions made by the Learned Counsel for the petitioners. This is a IInd Motion Amalgamation Proposal. Proxy-Counsel for the RD is present and submitted that they have raised certain objections which are still to be answered properly by the petitioners. RD is directed to file their clear response as to why the reply given by the petitioners is not acceptable to them. Proxy-Counsel for the Income Tax Department is present and submitted that a query has been raised with regard to transferor company No. 2 which has not yet been replied. Learned Counsel for the petitioner is directed to take steps to file response to the observations made on behalf of the Income Tax Department. Learned Counsel for the OL is directed to approach registry and take steps to bring their report on record.

Let the matter be fixed for 16.05.2023.

Sd/-
DR. BINOD KUMAR SINHA
MEMBER (TECHNICAL)

Sd/-
P.S.N. PRASAD
MEMBER (JUDICIAL)

Mukesh